

		of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown.” (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Here, Cross-Complainants seek to plead additional causes of action including Professional Negligence (Legal Malpractice), Breach of Fiduciary Duty, Libel, and Slander, in addition to the existing causes of action for Breach of Contract and Fraud. This court denied without prejudice a prior motion for leave to amend because the supporting declaration did not fully comply with California Rules of Court, rule 3.1324(b) because it did not specifically state the effect of the amendment, why it was necessary and proper, and when the facts giving rise to the amended allegations were discovered. By denying the previous motion without prejudice, the court did not reject Plaintiff/Cross-Defendant’s arguments, which are properly raised again in response to the present motion. Plaintiffs/Cross-Defendants do not make any claim that they would be prejudiced by the amendment. While Cross-Defendants contend that amendment would be futile, that argument is best addressed by way of demurrer, motion for judgment on the pleadings or other appropriate proceedings. (See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048; Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 760.) Moving Parties to give notice.
114	Ying v. Xiong, 2024-01443462	Plaintiff Fu Ying’s motion to vacate the dismissal entered by this Court on April 6, 2026 is GRANTED pursuant to CCP §473(b), on the basis of attorney fault. Plaintiff is ordered to pay reasonable attorney’s fees of \$600 (2 hrs at \$300/hr) incurred by Defendant in traveling to and from and appearing at the trial call.

(See Wen Yao Decl. ¶¶ 5-7.) The other hours incurred could have been avoided by stipulating to set aside the dismissal, which Defendant concedes is mandatory due to attorney fault. Defendant's only issue with the motion is the amount of fees to be awarded.

Fees are due and payable to Defendant's counsel within 30 days of this order.

As previously ordered by the court, trial call for the bench trial shall be on 09/01/2026 at 8:30 a.m. in Department N14. Counsel for the parties may appear remotely.

Plaintiff to give notice.